

24CHCV00015 24CHCV00015

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Case Number: 24CHCV00015 Hearing Date: August 11, 2026 Dept: F43

Dept. F43

Hearing Date: 08-11-26

Case # 24CHCV00015, Ascencio v. JCC

Transport, Inc., et al.

Trial Date: 11-02-26

MOTION TO COMPEL

DISCOVERY AND COMPEL FURTHER DISCOVERY RESPONSES

MOVING PARTY: Plaintiff Martin Ascencio

RESPONDING PARTIES: Defendants JCC Transport, Inc. and Edwin
Coreas

RELIEF REQUESTED

Order compelling defendant Coreas's further
responses to plaintiff's second sets of requests for admission numbers 38 and
42 and corresponding form interrogatory number 17.1(c)-(d).

Order imposing \$12,594.70 in monetary
sanctions against defendants and their counsel of record.

RULING: Motion is denied without prejudice. The court denies defendants request for sanctions.

SUMMARY OF ACTION

On January 3, 2024, plaintiff Martin Ascencio filed this personal injury action against defendants JCC Transport, Inc. and Edwin Coreas, asserting a single motor vehicle cause of action. Plaintiff alleges defendant Coreas injured Plaintiff with his vehicle on August 17, 2023, on the 405 freeway, while operating a vehicle owned by JCC Transport and acting within the course and scope of his employment with JCC Transport. Defendants filed a served answer on December 23, 2024.

On March 18, 2026, Plaintiff served his second sets of form interrogatories and requests for admission on defendant Coreas. (Declaration of Kim Savo ¶ 3.) On April 20, 2026, Plaintiff served his first set of special interrogatories on each defendant. (Savo Decl. ¶ 3.) Between April 22, 2026 and June 17, 2026, counsel and paralegals exchanged several emails concerning deadline extensions. (Savo Decl. ¶¶ 8-9, Exhs. A, B, C.) Defendants agreed to serve objection-free responses to the requests for admissions and form interrogatories no later than June 5, 2026, and to serve special interrogatory responses no later than June 15, 2026. (Savo Decl. ¶ 6, Exh. A at p. 1.) Defendants served mixed objection and substantive responses on June 9, 2026. (Savo Decl. ¶ 8; Declaration of Joseph Z. Mkryan ¶ 4, Exh. 1.) Plaintiff requested the agreed upon objection-free responses no later than June 26, 2026. (Savo Decl., Exh. C [meet and confer letter].) However, no responses were served by that date.

On July 1, 2026, Plaintiff filed and served a motion to compel defendant Coreas's further objection-free responses to the from interrogatories and requests for admission and both defendants' objection-free responses to Plaintiff's first set of special interrogatories. (Mkryan Decl. ¶ 6.) The motion did not include a separate statement. On July 14, 2026 around 12:30 p.m., Defendants electronically served amended responses, withdrawing objections. (Savo Decl. ¶ 12; Mkryan Decl. ¶ 7, Exh. 2.) Defendant Coreas provided objection-free responses to his requests for admission and form

interrogatories, and both Defendants provided an objection-free response to special interrogatory number 1. (Mkryan Decl., Exh. 2.) Later that day around 1:30 p.m., defense counsel requested that the motions be taken off-calendar because they were moot, they were deficient due to a missing separate statement, and Plaintiff failed to comply with local rules concerning "meet and confer" requirements. (Savo Decl. ¶ 13; Mkryan Decl. ¶ 10, Exh. 3.) Plaintiff's counsel refused to withdraw the motions, and Defendants filed an opposition on July 15, 2026. (Savo Decl. ¶ 13; Mkryan Decl. ¶ 12, Exhs. 4, 5.) The opposition mentioned the issues in the July 14, 2026, letter.

On July 17, 2026, Plaintiff's served Defendants with a Notice of Continuance of the July 28, 2026, motion to August 11, 2026. (Mkryan Decl. ¶ 21.)

On July 20, 2026, Plaintiff filed the instant renewed motion to compel Defendants' further, addressing arguments in Defendants' opposition to the previous motion and seeking attorney fees incurred for both motions.

On July 29, 2026 around 12:00 p.m., defense counsel emailed plaintiff's counsel, Kim Savo, identifying flaws with Plaintiff's renewed motion, including failure to properly meet and confer, and telephoned and spoke with Ms. Savo shortly thereafter. (Mkryan Decl. ¶ 22, Exh. 6.) Defense counsel represented that he was amenable to meeting and conferring about outstanding amended responses and requested that Plaintiff withdraw the defunct motion or he would seek sanctions in the opposition. (Mkryan Decl. ¶ 22; Reply Declaration of Kim Savo ¶ 6 [discussing requests for admission numbers 38 and 42].) Ms. Savo stated it was doubtful the second motion would be withdrawn. (Mkryan Decl. ¶ 22.)

On July 29, 2026 at 5:08 p.m., Defendants filed an opposition to the instant motion.

Attorney Savo emailed defense counsel Mkryan on July 30, 2026, stating the instant motion is the same motion rather than a

new one which was refiled to address the separate statement issue. (Reply Savo Decl. ¶ 7, Exh. F.) Ms. Savo also stated the motion would be

withdrawn if defense counsel provided “truthful, unqualified responses to RFAs 38 and 42.” (Reply Savo Decl. ¶ 7.)

Plaintiff replied on August 4, 2026.

SUMMARY OF ARGUMENTS

Plaintiff contends his motion is not moot because Defendants failed to timely respond to discovery, waited until the day before their opposition was due to serve amended responses, and substituted bad faith boilerplate responses for objections. According to Plaintiff, he invited defense counsel to call his to discuss his “meet and confer” letter, but he failed to do so. Second, Plaintiff acknowledges the amended responses but claims the responses to form interrogatory number 17.1, subparts (c) and (d) as to requests for production 38 and 42 are insufficient. Third, Plaintiff claims defendant Coreas’ responses to requests numbers 38 and 42 are not made in good faith based on the medical records produced by Plaintiff and Coreas’ other admissions. Moreover, the motion is moot as to special interrogatory number 1 because of the amended response. Finally, Plaintiff insists \$12,594.70 in monetary sanctions are mandatory because Defendants failed to serve timely responses based on the extension agreements and no substantial justification exists for the late responses.

In opposition, Defendants contend Plaintiff’s first motion and this motion were improperly filed and rescheduled without a court order or a stipulation. Plaintiff used Defendants’ opposition to the prior motion to update his renewed motion which is also defunct. Plaintiff did not provide proper notice for the renewed motion by failing to provide additional time required for electronic service, serving the document one court day late. Second, Plaintiff failed to directly meet and confer before filing his renewed motion. Because Plaintiff’s counsel’s failure to follow local rules and the statutory requirements has resulted in Defendants filing two oppositions, the court should impose \$4,000 in monetary sanctions against Plaintiff and his counsel of record.

ANALYSIS

A. Plaintiff’s

motion is denied without prejudice due to procedural deficiencies.

1. The court

considers the instant motion a new motion rather than a renewed motion.

A plaintiff may not unilaterally continue a motion date without either a court order or a stipulation from the opposing party. California Rule of Court 3.1304 addresses the scheduling and appearance requirements for law and motion hearings, imposing an affirmative duty on the moving party to immediately notify the court if a matter will not be heard on the scheduled date.

(Cal. Rules of Court, rule 3.1304(b).)

This rule does not authorize the moving party to reschedule the hearing on its own.

Plaintiff's reply declaration characterizes the instant motion as a "renewed motion" that was rescheduled to August 11, 2026. (Reply Savo Decl. ¶ 5.)

However, the instant motion is not a renewed motion because it includes a separate statement, addresses amended responses which were served after the initial motion was filed, and includes arguments that Defendants included in their opposition to the initial motion. Defendants' late-served amended responses moot many of the arguments in Plaintiff's first motion.

The court is also perplexed by the instant motion because the memorandum of points and authorities seek further objection-free responses to request numbers 38 and 42 and corresponding form interrogatory number 17.1, subparts (c) and (d). (Motion at pp. 2:1-5, 5:5-6:18.) Yet, the separate statement also addresses request numbers 11, 13, 17, 34, 38, 39, 42 and special interrogatory number 1, requesting sanctions and stating the motion is moot as to unqualified responses. More critically, in the context of a motion to compel further discovery responses, unilaterally taking a motion off calendar and refile it as a new motion, while claiming the motion is a renewed motion, constitutes an effective withdrawal of the original motion.

Rather than consider the instant motion a renewed or continued motion, the court finds that the previous motion to compel further was withdrawn – due in part to the separate statement deficiency raised in Defendants' previous opposition – and considers the instant motion to be a new

motion which addresses Defendants' supplemental responses.

2. Plaintiff has failed to comply with this court's "meet and confer" requirement.

A motion to compel further responses to interrogatories and requests for admissions must include a declaration stating facts showing a "reasonable and good faith attempt" to resolve the issues mentioned in the motion before filing.

(Code Civ. Proc., §§ 2016.040, 2030.300, subd. (b)(1), 2033.290, subd.

(b)(1).) In Department F43, meet and confer means in person or via phone.

Letters and emails do not suffice.

(Department F43 Courtroom Information, p. 2.)

The moving papers indicate Ms. Savo emailed defense counsel a "meet and confer" letter on June 17, 2026, addressing the objections, requesting objection-free amended responses, and inviting defense counsel to call Ms. Savo. (Savo Decl. ¶ 9, Exh. C.) The moving papers do not indicate whether Ms. Savo ever attempted to call defense counsel but engaged in all pre-motion conferring through emails.

The moving papers demonstrate no telephonic meet and confer concerning the substance of the discovery responses occurred until July 29, 2026, after Defendants served their amended responses and after Plaintiff filed his motion on July 20, 2026. Despite Ms. Savo's attempt to shift the "meet and confer" responsibility onto defense counsel and his characterizing the post-motion telephone conversation as a valid pre-motion "meet and confer," the moving papers indicate otherwise. (Reply at p. 5:7-17.)

Because the moving party bears the burden of initiating the "meet and confer" process in person, by telephone, or by videoconference (Code Civ. Proc., § 2016.040), the court finds the "meet and confer" requirement is not met for this motion.

3. Plaintiff failed to timely serve the instant motion.

Next, Plaintiff failed to the timely serve the instant motion within the statutory time limits.

Unless otherwise specified by law, all moving and supporting papers must be filed and served at least 16 court days before the motion hearing. (Code Civ. Proc., § 1005, subd.

(b).) Where the motion is served electronically or by express mail, the motion must be filed and served at least 18 court days before the noticed hearing date.

(Golf & Tennis Pro Shop, Inc. v. Superior Court (2022) 84 Cal.App.5th 127, 136-138; Code Civ. Proc., § 1010.6, subd. (a)(3)(B).)

Because Plaintiff electronically served the instant motion and scheduled the hearing date for August 11, 2026, the latest the motion could be filed and served was July 16, 2026. Plaintiff filed and served his motion on July 20, 2026, making the motion untimely.

Plaintiff does not dispute the service defect. (Reply at p. 6:11-27.) Instead, plaintiff asserts the continuance to August 11, 2026, accounted for any shortfall.

However, this statement ignores that Defendants had already opposed Plaintiff's previous motion and that his new motion directly addresses the arguments in the previous opposition and the amended responses. Plaintiff contends the court should not deny the motion on this basis alone because Defendants were able to file a 173-page Opposition addressing the merits of his motion. (See Carlton v. Quint (2000) 77 Cal.App.4th 690.)

The court has discretion to consider a late motion where the moving party is not prejudiced or their substantive rights are not affected. (See Harlan v. Department of Transportation (2005) 132 Cal.App.4th 868, 873-875.)

Here, Defendants were able to file an opposition, but the opposition is focused mainly on procedural deficiencies rather than the substance of Plaintiff's arguments.

Furthermore, the moving papers indicate Defendants have suffered some prejudice because Plaintiff has used their arguments from a prior opposition against them and seeks over \$10,000 in sanctions for a previous motion that was itself deficient due to a missing separate statement.

Therefore, the court finds the motion deficient due to untimely service.

4. Plaintiff's

separate statement violates California Rule of Court, rule 3.1345(c)(3).

Plaintiff's separate statement is defective because it addresses discovery responses for which Plaintiff does not seek further responses: special interrogatory number 1 and requests for admission numbers 11, 13, 17, 34, and 39.

Motions to compel further responses to requests for production or interrogatories must be accompanied by a separate statement. (Cal. Rules of Court, rule 3.1345(a)(2)-(3).) "The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response." (Cal. Rules of Court, rule 3.1345(c), emphasis added.) The separate statement must contain: "(1) The text of the request, interrogatory, question, or inspection demand; (2) The text of each response, answer, or objection, and any further responses or answers; (3) A statement of the factual and legal reasons for compelling further responses, answers, or production as to each matter in dispute; (4) If necessary, the text of all definitions, instructions, and other matters required to understand each discovery request and the responses to it; (5) If the response to a particular discovery request is dependent on the response given to another discovery request, or if the reasons a further response to a particular discovery request is deemed necessary are based on the response to some other discovery request, the other request and the response to it must be set forth; and (6) If the pleadings, other documents in the file, or other items of discovery are relevant to the motion, the party relying on them must summarize each relevant document." (Id.)

The court may, in its discretion, deny a motion to compel further production if the motion is accompanied by a deficient separate statement. (Cf. *In re Marriage of Moore* (2024) 102 Cal.App.5th 1275, 1296; see also *Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 893.)

Plaintiff's separate statement fails to state "factual and legal reasons for compelling further responses" to his special interrogatories and requests numbers 11, 13, 17, 34, and 39. Instead, Plaintiff uses the separate statement as an opportunity to justify awarding sanctions for his previously withdrawn deficient motion to compel further.

This is an improper use of a separate statement.

Because Plaintiff's motion is defective due to untimely service, failure to meet and confer, and an improper separate statement, the court denies the motion without prejudice.

B. Sanctions

Plaintiff seeks \$12,594.70 in monetary sanctions related to filing both of his motions to compel further. (Savo Decl. ¶ 16.)

Courts must impose monetary sanctions against any party who unsuccessfully makes or opposes a motion to compel further responses to requests for admission or form interrogatories, unless the court finds that the one subject to the sanction acted with substantial justification or other circumstances render the sanction unjust.

(Code Civ. Proc., §§ 2030.300, subd. (d), 2033.290, subd. (d).) "It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." (Code Civ. Proc., § 2033.280, subd. (c).)

The court denies Plaintiff's sanctions request because the moving papers indicate he did not properly file the instant motion in good faith. Plaintiff initially filed a deficient motion, attempted to renew the motion without a stipulation or court permission, untimely served the instant motion, failed to meet and confer directly before filing the instant motion, and filed a defective separate statement. Despite a voicemail and emails from defense counsel concerning the issues with the previous motion and receiving Defendants' amended responses, Plaintiff engaged in conduct which directly violates several rules of court and the Code of Civil Procedure. The court also notes that Plaintiff also improperly seeks fees related to serving the initial discovery requests. (Savo Decl. ¶ 16.)

The court understands that Defendants failed to serve timely objection-free responses when promised and that this led to Plaintiff filing his initial motion to compel further. However, the initial motion was deficient and effectively withdrawn, and Plaintiff failed to request a continuance to remedy the deficiencies and now seeks sanctions for both motions without providing any substantial justification for known procedural deficiencies.

Therefore, the court denies Plaintiff's request for \$12,594.70 in monetary sanctions.

In opposition, Defendants seek \$4,000 in monetary sanctions for preparing oppositions to the initial motion and the instant motion. (Mkryan Decl. ¶ 18.) Defense counsel charges \$400 per hour and seeks the following: (1) 1.0 hour reviewing the initial motion and supporting papers; (2) 3.0 hours preparing the opposition to the initial motion; and (3) 1.0 hour for the motion hearing. (Mkryan Decl. ¶ 16.) For the initial motion, defense counsel seeks: (1) 1.0 hour reviewing the motion; (2) 3.0 hours preparing the opposition; and (3) 1.0 hour for the motion hearing. (Id. ¶ 18.)

Although the court finds that Plaintiff's motion is defective, the court finds that awarding Defendants sanctions would be unjust because it was their initial failure to comply with their agreement to serve objection-free responses that led to the instant motion.

Therefore, the court denies Defendants' request for \$4,000 in monetary sanctions.

CONCLUSION and ORDER

Plaintiff's motion to compel defendants' further responses to his requests for admission, form interrogatory number 17.1, and special interrogatories is denied without prejudice. The court denies Plaintiff's request for sanctions.

The court denies Defendants' request sanctions.

Plaintiff to give notice.